

Document 00 63 23 - GMP Amendment (CM at Risk Contract)

State of Ohio Standard Requirements for Public Facility Construction

Exhibit D

The Brecksville-Broadview Heights City School District Board and the CM enter into this Amendment as of the date set forth below to amend the Contract they entered into as of the date set forth below in connection with the Project known as:

Project Name: Brecksville-Broadview Heights CSD Capital Improvement

School District Board (“Owner”): Brecksville-Broadview Heights CSD

Contracting Authority: Brecksville-Broadview Heights CSD

Construction Manager (“CM”): Shook Construction Co.

ARTICLE 1 - CONTRACT SUM AND RELATED ITEMS

1.1 The Contract Sum is \$47,394,827.28 which is the sum of the estimated Cost of the Work, plus the CM’s Contingency, plus the CM’s Fee as follows:

1.1.1 The estimated Cost of the Work is \$45,754,584.00 which includes all Allowances (if any) and Unit Prices (if any) defined through this Amendment, and is the sum of:

1.1.1.1 CM’s Construction Stage Personnel Costs in the amount of \$933,126.00 which amount shall not exceed \$933,126.00;

1.1.1.2 General Conditions Costs in the amount of \$612,616.00, which shall not exceed \$612,616.00

1.1.1.3 all Work the CM proposes to provide through Subcontractors in the amount of \$44,003,997.65

1.1.1.4 all Work the CM proposes to self-perform directly or through a CM Affiliated Entity in the amount of \$0.00 which amount does not include any costs accounted for under the CM’s Construction Stage Personnel Costs or General Conditions Costs.

1.1.2 The CM’s Contingency in the amount of \$880,079.95, which shall not exceed 2 percent of the above-identified Cost of the Work.

1.1.3 The CM’s Fee in the amount of \$965,007.67, which shall not exceed 2.15 percent of the sum of the above-identified Cost of the Work plus the above-identified CM’s Contingency.

ARTICLE 2 - CONTRACT TIMES

2.1 The Contract Times are the periods of time established in the following table for the achievement of the associated Milestones:

Construction Stage Milestone	Contract Time
Substantial Completion of Elementary School and Field House	842 days

ARTICLE 3 - LIST OF EXHIBITS

3.1 This Amendment is based upon the following documents:

3.1.1 Basis Documents attached at **GMP Exhibit A**;

(This exhibit includes a complete list of all of the Drawings, Specifications, and other documents, upon which the CM relied to prepare this Amendment.)

3.1.2 Assumptions and Clarifications attached at **GMP Exhibit B**;

(This exhibit includes a complete list of the assumptions and clarifications made by the CM in the preparation of this Amendment, which list is intended to clarify the information contained in the Basis Documents, but is not intended to otherwise modify the Contract.)

3.1.3 Project Estimate attached at **GMP Exhibit C**;

(This exhibit includes a detailed estimate of the Cost of the Work which (1) allocates the cost of each of item of the Work to labor and materials/equipment organized by trade categories and (2) does not contain a lump-sum estimate for any item other than the CM's Fee and the CM's Contingency. This exhibit is informational only. It is included to provide a tool to evaluate, analyze, and discuss the proposed Contract Sum.)

3.1.4 Project Schedule attached at **GMP Exhibit D**;

3.1.5 Construction Progress Schedule attached at **GMP Exhibit E**;

3.1.6 Staffing Plan attached at **GMP Exhibit F**;

(This exhibit includes the CMs detailed plan for staffing the Project during the Construction Stage and an outline of the qualifications and experience of the CM's proposed project manager and proposed superintendent, including references, unless the CM previously submitted that information and the CM's project manager and superintendent were approved.)

3.1.7 Subcontractor Work Scopes attached at **GMP Exhibit G**;

(This exhibit includes a detailed scope-of-Work description for each anticipated Subcontract.)

3.1.8 Scope of CM's Self-Performed Work attached at **GMP Exhibit H**;

(This exhibit includes a detailed scope-of-Work description for all trade Work the CM proposes to perform itself or through a CM Affiliated Entity if the requirements in the Contract are met; otherwise this scope of Work will be performed by a Subcontractor.)

3.1.9 Schedule of Allowances attached at **GMP Exhibit I** (if applicable);

(This exhibit includes a complete list and detailed description of all Allowance Items with related measurement and payment terms.)

3.1.10 Schedule of Unit Prices attached at **GMP Exhibit J** (if applicable);

(This exhibit includes a complete list and detailed description of all Unit Price items with related measurement and payment terms.)

3.1.11 Schedule of Alternates attached at **GMP Exhibit K** (if applicable); and

(This exhibit includes a complete list and detailed description of all Alternates with related measurement and payment terms.)

3.1.12 Schedule of Incentives attached at **GMP Exhibit L** (if applicable).

(This exhibit includes a detailed description of all performance incentives/bonuses applicable to the Work including related measurement/entitlement and payment terms.)

TREASURER'S CERTIFICATION

IT IS HEREBY CERTIFIED that the moneys required to meet the obligations of the **Board of Education of the Brecksville-Broadview Heights City School District** under the foregoing Amendment have been lawfully appropriated for such purposes and are in the treasury of the **School District** or are in the process of collection to an appropriate fund, free from any previous encumbrance.

Signature

Printed Name

School District Treasurer

SIGNATURES

IN WITNESS WHEREOF, the parties hereto have executed this GMP Amendment as of the date set forth below:

SHOOK CONSTRUCTION INC.**BRECKSVILLE-BROADVIEW HEIGHTS CSD**

Signature

Signature

Printed Name

Printed Name

Board President

Title

Signature

Printed Name

Treasurer

*Date***END OF DOCUMENT**